



CHAPTER xxix.

An Act for incorporating and conferring powers on the Wellington (Salop) Gas Company and for other purposes. A.D. 1903.
[30th June 1903.]

WHEREAS certain persons under a deed of settlement dated the thirty-first day of March one thousand eight hundred and fifty-one formed themselves into a company under the name of “the Wellington Coal and Gaslight Company” (hereinafter referred to as “the existing company”) for the purpose of manufacturing gas and lighting therewith the town of Wellington in the county of Salop and the vicinity thereof and to supply the inhabitants and others therewith and if thought expedient to supply gas to Oakengates and Ketley in the said county or to any other place not exceeding five miles from Wellington aforesaid and generally for carrying on the business usually carried on by coal and gas companies and such company was completely registered on the tenth day of April one thousand eight hundred and fifty-one in pursuance of the Act for the regulation of joint stock companies and was further registered on the twenty-eighth day of October one thousand eight hundred and fifty-six under the Joint Stock Companies Act 1856 :

And whereas by the Wellington (Salop) Gas Order 1872 confirmed by the Gas and Water Orders Confirmation Act 1872 (hereinafter called “the Order of 1872”) the existing company were empowered to maintain and continue gasworks upon the lands described in the Schedule to such Order and to supply gas within such parts of the parishes and places of Wellington and Wrockwardine in the county of Salop as lie within a radius of two miles from the parish church of All Saints in Wellington aforesaid save and except such parts of the township of Hadley as lie to the east side of the brook course at Haybridge and north of

A.D. 1903. the Great Western Railway but including such parts of the said township of Hadley as lie between the said Great Western Railway and the Shropshire Union Railway and west of the said brook course all in the said parish of Wellington and county of Salop :

And whereas the share capital of the existing company authorised by the Order of 1872 consists of—

(A) The original share capital amounting to twelve thousand pounds divided into one thousand two hundred shares of ten pounds each and entitled under the Order of 1872 to a dividend of ten per centum per annum out of the profits of the undertaking ;

(B) Additional capital of nine thousand pounds divided into nine hundred shares of ten pounds each and entitled under the Order of 1872 to a dividend of seven per centum per annum out of the profits of the undertaking ;

the whole of which capital has been subscribed and fully paid up and the existing company have borrowed by perpetual debenture stock on the security of their undertaking the sum of four thousand pounds at the rate of five per centum per annum :

And whereas it is expedient that the existing company should be dissolved and re-incorporated with further powers :

And whereas the demand for gas in the district supplied by the existing company has increased and is increasing and it is expedient that the Company be authorised to extend and improve the existing gasworks and that additional capital be provided for such improvement extension and works :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short title. 1. This Act may be cited as the Wellington (Salop) Gas Act 1903.

Incorporation of Acts. 2. The Companies Clauses Consolidation Acts 1845 to 1889 (except the provisions with respect to the conversion of borrowed

money into capital and except Part IV. of the Companies Clauses Act 1863) the Gasworks Clauses Act 1847 (except sections thirty to thirty-four) and the Gasworks Clauses Act 1871 (so far as they are applicable for the purposes and not inconsistent with the powers of this Act) are subject to the provisions of this Act incorporated with and form part of this Act : A.D. 1903.

Provided that section thirty-five of the Gasworks Clauses Act 1847 shall be read and construed as if the words from “in case the whole” down to “have been paid” were omitted therefrom and as if the expression “the prescribed rate” included the standard rate of dividend authorised by this Act or such rate as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the insurance fund.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction : Interpretation.

The expression “the Company” shall mean the Company incorporated by this Act ;

The expressions “the works” “the gasworks” and “the undertaking” shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvement thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively.

4. The limits of this Act shall be the limits of supply defined by the Order of 1872 being the parts of the parishes and places hereinafter described (namely) :— Limits of Act.

Such parts of the parishes and places of Wellington Wrockwardine and Hadley in the county of Salop as lie within a radius of two miles from the parish church of All Saints in Wellington aforesaid save and except such parts of the parish of Hadley as lie to the east side of the brook course at Haybridge and north of the Great Western Railway but including such parts of the said parish of Hadley as lie between the said Great Western Railway and the Shropshire Union Railway and west of the said brook course.

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RE-INCORPORATION OF COMPANY.

Re-incorporation of Company.

5. From and after the passing of this Act the existing company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes hereinafter mentioned and shall be incorporated by the name of "The Wellington (Salop) Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act or of their undertaking.

General purposes of Company.

6. The Company shall be established for the purposes of acquiring maintaining altering improving enlarging extending and renewing the existing gasworks of the existing company and manufacturing storing and supplying gas for lighting heating motive power and all other domestic trading public and other purposes within the limits of this Act and for converting or utilising and distributing materials used in or about the manufacture of gas and of residual products resulting from such manufacture and for dealing or selling and disposing of gas coke tar lime chemicals and residual and manufactured products and any other material or substance used in or arising or to be made and obtained from or in the manufacture of gas or by the combination of any of the above-mentioned matters either with each other or with other substances and may (but only for the purposes of the Company within the limits of this Act) acquire or take and use any leave licence or authority (not being exclusive) to work use exercise or put in practice any invention or inventions under any letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke tar pitch asphaltum ammoniacal liquor and other products from coal and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto (but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention or inventions) and may carry on any business usually carried on by gas companies or which is or may become incidental thereto and generally for carrying the powers of this Act into execution.

7. Subject to the provisions of this Act all the lands gas-works erections buildings rights and easements which immediately before the passing of this Act were vested in the existing company or any person in trust for them or to which the existing company were in anywise entitled and all mains pipes plant plugs lamps retorts gauges meters gas stoves cookers gas fittings lamp-posts syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the existing company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the existing company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the existing company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the existing company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

A.D. 1903.

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Present
property of
existing com-
pany vested
in Company
incorporated
by this Act.

8. Subject to the provisions of this Act the deed of settlement constituting the existing company dated the thirty-first day of March one thousand eight hundred and fifty-one shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the existing company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said deed of settlement incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the existing company if this Act had not been passed.

Deed of
settlement of
existing com-
pany to be
void without
prejudice to
antecedent
breaches
thereof.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the existing company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said deed of settlement had not been avoided by this Act

Nothing to
affect pre-
vious rights
and liabili-
ties.

A.D. 1903, — and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said deed of settlement were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and their stockholders and property shall to all intents and purposes represent the existing company and the members thereof as such and the property of the existing company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

Contracts
prior to Act
to be binding.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the existing company or any trustees or persons acting on behalf of the existing company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the existing company or the trustees or persons acting on behalf of the existing company the Company had been a party thereto.

Actions &c.
not to abate.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the existing company or any member thereof in relation to the affairs of the existing company or to which the existing company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the existing company or any member thereof if this Act had not been passed the Company and the stockholders therein being in reference to the matters aforesaid in all respects substituted for the existing company and its members respectively.

Trustees of
existing com-
pany to be
indemnified.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the existing company were vested immediately before the passing of this Act and who (being authorised so to do) entered

into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the existing company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement. A.D. 1903.

13. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the existing company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the existing company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf. Company to satisfy liabilities of existing company.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the existing company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act. Recovery of gas rents &c.

15. All persons who immediately before the passing of this Act owed any money to the existing company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the existing company or for the payment of which the existing company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company. As to payment of debts owing before passing of Act.

16. Notwithstanding the avoidance of the said deed of settlement all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under it for and with respect to any shares in the existing company shall remain in full force and continue and be available in all respects as if they had not been avoided. Certificates &c. to remain in force.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance. Books &c. continued evidence.

18. All officers and servants of the existing company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the Officers to continue until removed.

A.D. 1903. salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present registers of members to be continued.

19. The books kept by the existing company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until a register of stockholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

CAPITAL.

Capital.

20. The capital of the Company shall be fifty-five thousand pounds ordinary stock whereof thirty-six thousand six hundred pounds shall be divided among the shareholders of the existing company in manner hereinafter provided and eighteen thousand four hundred pounds in this Act called "additional capital" shall be raised in the manner hereinafter mentioned.

Vesting of stock in present shareholders.

21.—(1) The sum of thirty-six thousand six hundred pounds stock shall be divided among and vested in the several persons who immediately before the passing of this Act were the registered members of the existing company their successors executors administrators and assigns in the following manner (that is to say):—

(A) Twenty-four thousand pounds stock shall be divided among the holders of the one thousand two hundred shares of ten pounds each in the existing company entitled to a dividend of ten per centum per annum at the rate of twenty pounds of such stock in respect of each share:

(B) Twelve thousand six hundred pounds stock shall be divided among the holders of the nine hundred shares of ten pounds each in the existing company entitled to a dividend of seven per centum per annum at the rate of fourteen pounds of such stock in respect of each share.

(2) Upon the passing of this Act there shall be created by virtue of this Act sufficient ordinary stock to give effect to the provisions of this section.

(3) The stock vested by this section shall be subject and liable to the same trusts powers provisions declarations agreements

charges liens and encumbrances as immediately before the passing of this Act affected the share or shares in respect of which such stock is so vested and so as to give effect to and not revoke any deed or other instrument or any testamentary disposition of or affecting the same. A.D. 1903.
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(4) The Company shall call in and cancel the certificates of shares in the existing company and shall issue in lieu thereof to every shareholder new certificates for the amount of ordinary stock to be held by him.

(5) Every new certificate in pursuance of this section shall be issued free of charge.

(6) No shareholder shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the share certificate for which the certificate of ordinary stock is substituted or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof.

22. Subject to the provisions of this Act the provisions of the Companies Clauses Consolidation Act 1845 with respect to the consolidation of the shares into stock (except section sixty-one of that Act) shall extend and apply to the ordinary stock of the Company. Application of provisions of Companies Clauses Consolidation Act 1845 to stock.

23.—(1) Any transfer of ordinary stock may be in multiples of one pound so long as thereby no holding of any stockholder of the Company is less than ten pounds of stock. Multiples of stock.

(2) Notice of the effect of this enactment shall be stated in all stock certificates.

24. The Company may raise additional capital not exceeding in the whole eighteen thousand four hundred pounds by the creation and issue of new ordinary stock but no such stock shall vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce (including any premium which may be obtained on the sale thereof) the sum of eighteen thousand four hundred pounds. Power to Company to raise additional capital.

25. Notwithstanding anything in this Act contained the Company shall when any stock created under the powers of this Act is to be issued and before offering the same to the holder of any other stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and New stock to be offered by auction or tender.

A.D. 1903. subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and that the reserved price put upon any such stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of stock in the Company except that if any bid or offer by tender of any such holder of stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder of stock shall be accepted in preference and preference may in like manner be given to any employee or consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of stock in the Company.

Purchase money of capital sold to be paid within three months.

26. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notices to be given as to sale of stock.

27. The intention to sell any such stock by auction or by tender shall be communicated in writing to the clerks of the district councils for the districts comprising any part of the limits of this Act and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of this Act.

Stock not sold by auction or by tender to be offered to stockholders employees or consumers.

28. When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may be offered at the reserved price put upon the same for the purpose of sale by auction or tender to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others. Provided always that any stock so offered and not accepted in the case of stock offered to the holders of ordinary stock within the time prescribed by the said

Act or in the case of stock offered to such employees or consumers within the time limited by the Company may again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act and the reserved price put upon such stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold may be again offered to the holders of ordinary stock or to such employees or consumers at the last-mentioned reserved price and so from time to time until the whole of such stock is sold. A.D. 1903.
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29. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that in any case where a power to raise money by borrowing or to create an insurance fund is made proportionate to the paid-up capital the premium received from the sale of stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital. Application
of premium
arising on
issue of
stock.

30. If any money be payable to a stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt of
guardian &c.
to be suffi-
cient dis-
charge.

31. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums which together with the sum of four thousand pounds borrowed by the existing company shall not exceed in the whole one-third part of the amount of the capital of the Company at the time actually issued by stock but no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof Power to
borrow.

A.D. 1903. — Provided that for the purposes of this section the existing paid-up capital of the Company shall be deemed to be twenty-one thousand pounds.

Priority of existing mortgages.

32. All mortgages granted by the existing company before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the terms thereof have priority over all mortgages and debenture stock granted created and issued by virtue of this Act.

For appointment of a receiver.

33. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

Debenture stock.

34. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages over other debts.

35. All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking and works or injuriously affected by the

construction thereof or by the exercise of any powers conferred on the Company. A.D. 1903.

36.—(1) In order to provide for the redemption of the perpetual debenture stock of the existing Company but solely for that purpose the Company may if they think fit— Power to redeem existing perpetual debenture stock.

(A) Raise such further capital in addition to the capital of fifty-five thousand pounds as they may require for such redemption by the creation and issue of new ordinary stock such stock to be issued in such amounts as may be agreed upon between the respective holders of the said perpetual debenture stock and the Company such respective holders to take the same in substitution for and in lieu of the perpetual debenture stock now held by such respective holders but no such augmentation of capital as aforesaid shall take place without the previous authority of a general meeting of the Company The capital so to be raised shall be considered as part of the capital of the Company and shall be subject to the same provisions in all respects as if it had been part of the capital of thirty-six thousand six hundred pounds in this Act referred to; or

(B) Create and issue such an amount of debenture stock under the provisions of this Act as they may require for such redemption such debenture stock to be issued in such amounts as may be agreed upon between the respective holders of the said perpetual debenture stock and the Company such respective holders to take the same in substitution for and in lieu of the perpetual debenture stock now held by such respective holders.

(2) The said new ordinary stock or debenture stock as the case may be shall vest in and belong to the respective holders of such perpetual debenture stock who shall accept the same in substitution for and in lieu of such perpetual debenture stock.

(3) The Company on the issue of new ordinary stock or debenture stock as the case may be under the provisions of this section shall forthwith cancel the perpetual debenture stock in substitution for which such new ordinary stock or debenture stock is issued.

(4) The borrowing powers of the Company under this Act shall be reduced by the amount of the new ordinary stock and debenture stock created and issued under this section.

A.D. 1903. **37.** All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

Application
of moneys.

LIMITATION OF PROFITS.

38. Except as by this Act otherwise provided the profits of the Company to be divided among the stockholders in any year shall not exceed the rate (which is in this Act referred to as "the standard rate of dividend") of five pounds in respect of every one hundred pounds of such capital.

Standard
rate of
dividend.

39. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the ordinary capital at the authorised rate the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one twentieth as aforesaid. Provided also that for the purposes of this section the existing paid-up capital of the Company shall be deemed to be twenty-one thousand pounds.

If profits
exceed
amount
limited
excess may
be invested
and form an
insurance
fund.

40. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend at the authorised rate on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be

Application
of excess of
profits over
authorised
rate of
dividend.

carried to the credit of the divisible profits of the undertaking for the next following year. A.D. 1903.

41. Where in any year the dividend on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company together with any existing reserve fund of the existing company may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Power to create a reserve fund out of dividends in excess of standard rate of dividend and application thereof.

MEETINGS DIRECTORS &c.

42. The first ordinary meeting of the Company shall be held within nine months after the passing of this Act and the subsequent ordinary meetings shall be held in the month of February in each year or at such other time as shall be appointed for that purpose by an order of a general meeting.

Ordinary meetings.

43. The quorum of all general meetings whether ordinary or extraordinary shall be six stockholders present in person or by proxy holding not less in the aggregate than two thousand pounds in the ordinary capital of the Company.

Quorum of meetings of Company.

44. At all general meetings of the Company every stockholder shall have one vote in respect of every ten pounds of stock held by him up to one hundred pounds (nominal value) of stock and an additional vote for every fifty pounds (nominal value) of stock beyond the first hundred pounds held by him up to one thousand pounds and an additional vote for every one hundred pounds (nominal value) of stock beyond the first one thousand pounds held by him.

Voting.

45. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than three.

Number of directors.

A.D. 1903. **46.** The qualification of a director shall be the possession in his own right of stock to the nominal amount of not less than two hundred and fifty pounds.

Qualification of directors. **47.** The quorum of a meeting of directors shall be three.

Quorum of directors. **48.** The directors of the existing company namely Harry Shepard Charles Whitford Leake William Robert Mansell Thomas Taylor and Hugh Hobson shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act.

First directors. **49.** At the first ordinary meeting held after the passing of this Act the stockholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the stockholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions in the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in the manner provided by the same Act.

Election of directors. **50.** No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract.

Directors not to be disqualified &c. **51.** The directors may in any year without calling a meeting of stockholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half year one half of the amount of the standard dividend.

Interim dividend. **52.** The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some

Closing of transfer books previous to declaring

newspaper published or circulating in the district within which the Company's principal office is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

A.D. 1903.
interim
dividend.

52. The period to which the books of the Company shall be balanced shall be the thirty-first day of December in each year.

Books to be
balanced to
31st day of
December.

WORKS AND LANDS.

53. Subject to the provisions of this Act the Company may upon the lands described in the Schedule to this Act or any part or parts thereof maintain alter improve enlarge extend and renew or discontinue the existing gasworks of the existing company and they may also upon the same lands or any part or parts thereof construct erect lay down provide maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas of any kind or description and for any purpose within the limits of this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar pitch asphaltum ammoniacal liquor oil sulphate of ammonia chemicals and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

Powers as to
construction
and main-
tenance of
gasworks.

54. The Company may for the purposes of their undertaking purchase take on lease and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

Power to
purchase
lands by
agreement.

Gas not to be
manufactured except
on lands
scheduled.

55. The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or

Restriction
on taking
houses of la-
bouring class.

A.D. 1903. — more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Company may sell or lease lands not required.

56. The Company may from time to time sell for all their estate and interest therein or lease for any term or terms not exceeding seven years any lands vested in or acquired by them and which may not be required for the purposes of the Company.

Power to lay pipes in streets not dedicated to public use.

57. The Company may upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out but not dedicated to public use supply such premises with gas and may lay down and from time to time repair take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to utilise pipes for ancillary purposes.

58. The Company may lay down place repair alter remove and renew subways mains pipes culverts wires and other apparatus within the limits of this Act for the purpose of procuring conducting or disposing of any oil and other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and

for the protection of pipes when laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. A.D. 1903. —

59.—(A) Any works to be constructed laid down or executed in exercise of the powers conferred by this Act crossing or otherwise interfering with any railway or the stations bridges or works thereof at any time belonging to or worked or occupied by the Great Western Railway Company or the London and North Western Railway Company or the London and North Western and Great Western Railway Companies jointly shall be done under the superintendence and to the reasonable satisfaction of the principal engineer having the charge of any such railway stations bridges and works respectively and according to plans to be reasonably approved by him before any such works are begun but in all things at the expense of the Company and so as not to cause any injury to any such railway stations bridges or works or any interruption of the passage or conduct of traffic over or at any such railway or stations and if any injury owing to or by reason of any of the matters aforesaid shall arise to any such railway stations bridges or works or interruption to any such traffic the Company shall make full compensation in respect thereof to the company or the companies affected thereby as the case may be. As to works affecting and for protection of railway companies.

(B) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of any such railway or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the said engineer elect so to do where any mains or pipes require to be laid under or across any level crossing of any such railway he may lay the same at the costs charges and expenses of the Company.

(c) If the Great Western Railway Company or the London and North Western Railway Company or the London and North Western and Great Western Railway Companies jointly at any time or times hereafter require (of which they shall be the sole judges) to construct any additional or other works upon their respective lands or railways or to alter or repair their respective railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or

A.D. 1903 — laid they may on giving to the Company fourteen days' notice in writing under the hand of their respective secretary or general manager and in case of emergency (of which the said engineer shall be the sole judge) without notice divert support or carry the said works of the Company across over or under their respective lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works.

(D) Except as in this section otherwise provided any dispute or difference which may arise between the said railway companies or either of them and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of either of the parties.

For protection of Shropshire Union Railways and Canal Company.

60. For the protection of the Shropshire Union Railways and Canal Company (hereinafter called "the Shropshire Union Company") the following provisions shall (unless otherwise agreed between the Company and the Shropshire Union Company) apply and have effect :—

(1) The Company shall not lay down or execute repairs or renewals to any mains pipes or other works in the exercise of the powers contained in this Act in such a manner as to interfere with any bridge lock towing path embankment or other work or property now or hereafter belonging to or repairable by the Shropshire Union Company or in any road repairable by them except under the superintendence and to the reasonable satisfaction of the engineer for the time being of the Shropshire Union Company and according to such plans and with such materials and at such times as shall first be reasonably approved by him in writing and the Company shall comply with all directions which the said engineer may give for the purpose of preventing injury to the canal works and property of the Shropshire Union Company or interruption to the traffic on such canal :

(2) If and as often as at any time hereafter the Shropshire Union Company shall have occasion to repair raise rebuild or alter any bridge or other work belonging to them upon over under through across or by the side of which any main pipe or other work may be carried or

laid by the Company any alteration of such main pipe or other work that may in the opinion of the said engineer be necessary for repairing raising rebuilding or altering of any such bridge or other work shall be made or executed and the main pipe or other work shall be replaced by and at the expense of the Company but no such repairing raising rebuilding or altering shall be commenced except in cases of emergency until the expiration of twenty-eight days after notice of the intention of the Shropshire Union Company in that behalf shall have been given by the Shropshire Union Company to the Company and if the Company fail or neglect to alter such main pipe or other work the engineer for the time being of the Shropshire Union Company may make such alterations thereof as he may consider necessary but doing as little damage as may be and the Shropshire Union Company may recover from the Company all expenses of and consequent upon such alteration as and by way of ascertained damages and the Shropshire Union Company shall not be liable to make compensation for any damage loss or injury occasioned by the alteration of any such main pipe or other work :

A.D. 1903.

- (3) The Company shall be responsible for and make good to the Shropshire Union Company all losses damages and expenses which may be occasioned to the Shropshire Union Company by or by reason of the execution or failure of any works executed by the Company in pursuance of the powers contained in this Act or by or by reason of any act default or omission of the Company or their contractors or any person in their employment and the Company shall effectually indemnify the Shropshire Union Company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission.

61. If any difference arises between the Company and any railway canal or other company or local authority whose land or works the Company have power to cross under the authority of this Act for the purposes of meeting the demands for gas within the limits of this Act as to the mode of laying down repairing altering or enlarging their pipes or the facilities to be afforded for the same the same shall except as by this Act otherwise provided be

Differences
with railway
or other
companies
or local
authority.

A.D. 1903. — settled by an engineer to be appointed by the Board of Trade at the request of either party.

SUPPLY OF GAS.

Dividend
dependent
on price
charged.

62. The standard price to be charged by the Company for gas supplied to persons who shall burn the same by ordinary meter shall be three shillings and ninepence per thousand cubic feet :

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary capital as follows :—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds :

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by two shillings and sixpence on every hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds.

Price for
public
lamps in
Wellington.

63. So long as the Company shall supply the whole of the public lamps in the urban district of Wellington with gas the price to be charged by the Company for gas supplied for such public lamps shall not exceed a sum which shall be fourpence per thousand cubic feet less than the price per thousand cubic feet from time to time generally charged by them for gas supplied to private consumers for illuminating purposes only.

Discounts.

64. The Company may if they think fit allow discounts or rebates not exceeding in any case ten per centum to consumers of gas in consideration of prompt payment of gas rents or to consumers of gas of large quantities upon such scale and subject to such conditions and regulations as may be prescribed by special

contract in writing between the Company and any of such consumers Provided that notice of the effect of this enactment shall be endorsed on every demand note for gas rent Provided also that such discounts or rebates shall be of equal amount under like circumstances to all consumers. A.D. 1903.
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65. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six tenths of an inch and from sunset to midnight not less than eight tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to the testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted. Pressure of
gas.

66. The prescribed number of candles shall be not less than fourteen. Quality of
gas.

67. The testing place at the works of the Company shall be the testing place required to be provided by the Company by the Gasworks Clauses Act 1871. Testing
place.

68. The prescribed burner shall be Sugg's London argand burner number one with a six-inch by one-and-three-quarter-inch glass chimney but if at any time and so long as the gas flame rises above the top of that glass a six-inch by two-inch chimney shall be used or any other burner or chimney approved for this purpose by the Board of Trade on the application of the Company. Burner.

69. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :— As to con-
struction
and placing
of pipes &c.
between
mains and
meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to

A.D. 1903.

the probable maximum consumption of gas thereon at any one time :

- (3) The specification shall be published twice in some newspaper circulating within the limits of this Act and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Company to pay interest on money deposited as security for gas meters.

70. If any person is required by the Company to give to them security for the payment of the price or rent of a meter the Company shall pay interest at the rate of four per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Power to supply gas fittings &c. for heating motive and other purposes.

71.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges dynamos motors pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for

which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the person to or for whom the fittings are sold let fixed up repaired or removed. A.D. 1903.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

72. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Company may cease to supply him with gas. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer. Anti-fluctua-
tors for gas
engines.

73. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company. Gas con-
sumers to
give notice
to Company
before
removing.

74. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same. Power to re-
fuse to supply
persons in
debt for other
property.

A.D. 1903. **75.** A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Company.

Period of error in defective meters. **76.** In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

No penalty in case of unavoidable cause. **77.** No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company or was of so slight or unimportant a character as not materially to affect the value of the supply. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Company may contract with local authority &c. for supply in bulk. **78.** The Company may contract with any local authority company or persons beyond the limits of this Act (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

MISCELLANEOUS.

Recovery of demands under fifty pounds. **79.** Proceedings for the recovery of any demand not exceeding fifty pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

80. The Company may purchase or take on lease dwelling-houses for persons in their employ and may erect fix up maintain and let houses cottages and buildings for such persons upon the lands for the time being belonging to or leased by the Company.

A.D. 1903.

Dwelling-houses for workmen.

81. The Company if they think fit may under the provisions of the Electric Lighting Acts 1882 and 1888 make application for a Provisional Order or licence to supply electrical energy for public and private purposes and may apply their funds for the purpose of such application. Provided that the Company shall not make any such application without first obtaining the consent of the urban district council of Wellington thereto.

Power to apply for a Provisional Order to supply electrical energy.

82. The Order of 1872 and so much of the Gas and Water Orders Confirmation Act 1872 as relates thereto are hereby repealed.

Repeal of Order of 1872.

83. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily. There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Copy of Act to be registered.

84. All costs charges and expenses of and incident and preliminary to the applying for preparing obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

Costs of Act.